

An arbitration status hearing is set for Tuesday, January 13, 2027, at 8:15 a.m. in Courtroom 8.

Auto Resources, as prevailing party, is ordered to prepare an order consistent with this order, to be filed with this court within five (5) days.

25CV-03796 Manuel Valencia, et al. vs Fire Insurance Exchange Insurance Company

Motion for Summary Judgment

Defendant's unopposed motion for summary judgment is GRANTED.

Upon consideration of all the evidence set forth in the moving papers the court finds that there is no triable issue of material fact and Defendant is entitled to judgment as a matter of law.

Defendant filed a separate statement of undisputed material facts, supported by admissible evidence, containing undisputed material facts that establish Plaintiffs' claims are barred by failing to file their lawsuit within the one-year provision of their policy.

This shifts the burden to Plaintiffs to show the existence of one or more triable issues of material fact. (Code Civ. Proc., § 437c, subd. (p)(2).) By not filing any opposition, including a separate statement, Plaintiffs have failed to meet their burden on this motion.

Defendant is ordered to prepare and file a proposed order and judgment consistent with this order, to be filed with this court within five (5) days.

25CV-05313 Brett Jones vs General Motors, LLC

Demurrer to Plaintiff's First Amended Complaint

Defendant's demurrer to Plaintiff's fifth cause of action is SUSTAINED WITH LEAVE TO AMEND on the basis of failure to state facts sufficient to constitute a cause of action.

Here, Plaintiff does not allege enough facts to support a fraudulent inducement concealment cause of action. For example and not exhaustive, the complaint (1) fails to identify the specific selling dealership that is alleged to be GM's authorized dealership, (2) fails to allege sufficient facts identifying the specific marketing statements that were misleading and that were relied upon by Plaintiff, (3) fails to allege sufficient facts regarding dealership personnel, conversations, or content of omissions at the point of sale, and (4) fails to allege sufficient facts tying the alleged authorized dealership's specific acts to GM beyond conveying information from GM to prospective purchasers.

Plaintiff is to file an amended complaint within ten (10) days of this court's order.

Motion to Strike